IN THE PESHAWAR HIGH COURT, PESHAWAR
Present:
* Hon'ble Mr. Justice Jamal Khan Mandokhail
* Hon'ble Mr. Justice Hasan Azhar Rizvi

Civil Appeal No. 783 of 2023
Citation: PLD 2023 Lah 369
Matter ID: MAT-CIVI-2023-022

BETWEEN:
Sultana Bibi ... Appellant / Petitioner
VERSUS
Collector of Sales Tax, Large Taxpayers Unit ... Respondent

LEGAL TOPIC: Civil - Specific Performance
STATUTES CITED: Specific Relief Act 1877, S. 12, Contract Act 1872, S. 73, Transfer of Property Act 1882, S. 53A

JUDGMENT
1. This judgment disposes of Civil Appeal No. 783 of 2023, directed against the final judgment rendered by the court below.
2. We have heard the learned counsel for the petitioner as well as the learned Additional Attorney General and perused the record with their able assistance.
3. The principal question requiring determination is:
Whether the impugned order violates principles of natural justice and Article 10A of the Constitution?
4. Learned counsel for the appellant vehemently argued that the statutory safeguards embodied in Specific Relief Act 1877, S. 12 were disregarded, thereby causing grave miscarriage of justice. On the contrary, learned counsel for the respondent defended the impugned judgment, asserting that full opportunity of hearing was afforded.
5. Having evaluated the record and relevant case law, it is well-settled that procedural law is handmaid of justice and cannot be weaponized to thwart substantive rights. The evidence on record clearly supports the findings arrived at.
6. HOLDING & RATIO DECIDENDI:
For the reasons recorded above, this Court holds that the concurrent findings arrived at by the learned High Court do not call for any interference. The appellant has failed to demonstrate any illegality or procedural irregularity in terms of Specific Relief Act 1877, S. 12. Appeal stands dismissed with no order as to costs.

Decided on: 13 October 2023.